EX TEMPORE

JOSEPH 'GINGER' CHINGUWA
and
GODFREY 'ZVABHENDAZVABHENDA' GURIRA
and
JOSEPH 'HITLER BAZOOKA' CHINYANGARE
and
REUBEN ZULU
and
DIGMORE NDIYA
and
WAR VETERANS PRESSURE GROUP TRUST
versus
THE PRESIDENT OF THE REPUBLIC OF ZIMBABWE
and
THE MINISTER OF LANDS, AGRICULTURE, WATER, CLIMATE, AND RURAL RESETTLEMENT
and
THE LAND COMMISSION

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 14 November and 17 November 2025

Constitutional Application

L T Biti, for the applicants.
T S Musangwa, for the respondents.

DEME J: The Applicants approached this court seeking a constitutional declarator. More particularly, the Applicants approached this court seeking the following relief:

> "(i). The new land tenure policy announced by the President on 8th October 2024 and reflected in Annexure A to this application, in respect of which title will now be issued to beneficiaries of

Land Reform Programme be and is hereby declared ultra vires the provisions of Section 72(5), 293(3) and 297(1)(a).

(ii). Title Deeds in respect of agricultural land that was acquired by the State and that vests in the State by virtue of the provisions of Section 72(4) and Section 290 of the Constitution were all cancelled and are non-existent in terms of Section 72(5) of the Constitution.

iii. No agricultural land vested in the State shall be sold, alienated, or privatized without enactment of an Act of Parliament defined in Section 293(3) of the Constitution of Zimbabwe.

iv. The alienation or transfer of any other agricultural land vested in the State cannot be done without consultation and approval of Zimbabwe Land Commission in terms of Section 297(1)(a) of the Constitution of Zimbabwe.

v. That there is no order as to costs."

The Applicants argued that the land tenure introduced by the first Respondent is unconstitutional. They also affirmed that such a policy violates the provisions of ss 72(5), 293(3), and 297(1)(a) of the Constitution. They are of the view that every land tenure ought to be approved by the Zimbabwe Land Commission established in terms of s 296 of the Constitution. The Applicants additionally affirmed that all agricultural land cannot be disposed of without an Act of Parliament defined in terms of s 293(3) of the Constitution. It is the view of the Applicants that title deeds in respect of agricultural land that was acquired by the State were cancelled.

The application was opposed by the Respondents. The Respondents raised the point *in limine* to the effect that the sixth Respondent lacks *locus standi*. However, the Respondents did not motivate this point *in* limine in the Heads of Argument and during oral submissions. I drew an inference that this point *in limine* was abandoned.

On the merits, the Respondents argued that the Applicants are labouring under a wrong assumption that the Act contemplated in terms of s 293(3) of the Constitution is not in place. They further argued that the Land Commission Act [*Chapter 20:29*] was enacted pursuant to the provisions of s 293(3) of the Constitution.

With respect to whether or not the land tenure ought to be approved by the Zimbabwe Land Commission, the Respondents alleged that the executive is not bound by the recommendations of the Zimbabwe Land Commission. Reference was made to s 297(3) of the Constitution and s 17 of the Land Commission Act.

The Respondents, thus, argued that the land tenure was not introduced in isolation. According to the Respondents, the land tenure policy was established following the provisions of s 17 of the Land Commission Act. The Respondents further argued that s 292 of the Constitution obliges the State to put measures in place that promote the security of land tenure. Thus, the impugned land policy, according to the Respondents, seeks to strengthen the security of the land tenure. The Respondents also argued that the new land tenure policy is not *ultra vires* the provisions of Sections 72(5), 293(3), and 297(1)(a) of the Constitution.

The Applicants, after going through opposing papers filed by the Respondents, argued that the Land Commission Act is not the Act contemplated in terms of s 293(3) of the Constitution. Mr. Biti argued that the Land Commission Act does not outline the processes and procedures for alienation of agricultural land, taking into account the provisions of s 293(2) and s 289 of the Constitution.

The following issues, from the above submissions, emerge for determination:

A. Whether the land tenure policy introduced by the first Respondent is *ultra vires* the provisions of ss 72(5), 293(3) and 297(1)(a) of the Constitution.

B. Whether it is necessary to declare that old title deeds in respect of agricultural land acquired by the State must be declared to have been cancelled.

C. Whether the first Respondent introduced the land tenure system without complying with the provisions of s 293(3) of the Constitution.

D. Whether the alienation of agricultural land cannot be done without the approval of the Land Commission.

In analysing the issues, I will not necessarily follow their order. I will start with the last issue of whether the land tenure ought to be approved by the Zimbabwe Land Commission. Section 17 of the Land Commission Act is very pertinent. The Section provides as follows:

> "(1) The Minister may, after consultation with the Commission and with the approval of the President, lease, sell or otherwise dispose of State land for such purposes and subject to such conditions and as he or she may determine.
> (2) The land may be leased or alienated to a single individual, a single corporate body, a single household or to two or more persons jointly."

A reading of s 17 of the Land Commission Act reflects that there is no need for approval of the Land Commission whenever agricultural land is being disposed of. The words "after consultation with" used in Section 17 of the Land Commission Act do not mean approval as contemplated by the Applicants in the present application. The words "after consultation with" are defined in Section 339(2) of the Constitution in the following way:

> "Whenever this Constitution requires any person or authority to consult anyone else, or to act after consultation with anyone else, the person or authority must—
>
> (a) Inform the other person, in writing, what he or she proposes to do and provide that person with enough information to enable the other person to understand the nature and effect of the proposed act;
>
> (b) Afford the other person a reasonable opportunity to make recommendations or representations about the proposal; and
>
> (c) Give careful consideration to any recommendations and representations that the other person may make about the proposal;
>
> But the person or authority is not obliged to follow any recommendations made by the other person."

Thus, in light of the definition of the words "after consultation with", it is apparent that the second Respondent is not bound by the recommendations of the Zimbabwe Land Commission. Further, Section 297(3) of the Constitution provides that the Zimbabwe Land Commission must exercise its functions subject to the directions which may be promulgated by the 2nd Respondent. Section 297(3) provides as follows:

> "The Zimbabwe Land Commission must exercise its functions in accordance with any general written policy directives which the Minister responsible for land may give it."

Thus, in light of s 17 of the Land Commission Act and s 297(3) of the Constitution, the Zimbabwe Land Commission does not give recommendations that are binding to the first and second Respondents. The opposite is true. On this basis, the relief sought in para (iv) of the draft order is misplaced.

I will now move to the issue of whether the first Respondent introduced the land tenure system without complying with s 293(3) of the Constitution. Section 293(3) of the Constitution provides that:

> "An Act of Parliament must prescribe procedures for the alienation and allocation of agricultural land by the State, and any such law must be consistent with the principles specified in section 289."

An Act of Parliament contemplated by the Constitution was defined in Section 332 of the Constitution. It is defined as follows:

> "Act of Parliament" means—
> (a) An enactment that has been passed by Parliament and then assented to and signed by the President in accordance with this Constitution; or
> (b) An enactment that was in force in Zimbabwe as an Act of Parliament immediately before the effective date, including—
>
> (i) Any enactment included in the revised edition of statute law of Zimbabwe prepared in 1996 under the authority of the State Law Compilation and Revision Act, *chapter 1:03*]; and
> (ii) Any enactment which, though omitted from the revised edition referred to in subparagraph (i), continued in force notwithstanding the omission; and
> (iii) Any enactment enacted by the Parliament of Zimbabwe after the revised edition referred to in subparagraph (i) but before the effective date;".

It is apparent that the Land Commission Act was enacted after the promulgation of the Constitution of Zimbabwe, which came into force in 2013. The Land Commission Act became an Act of Parliament on 26 February 2018. Thus, it falls within para (a) of the definition of "Act of Parliament" outlined in Section 332 of the Constitution. Hence, the first and second Respondents ensured that an Act of Parliament was in place before introducing the impugned land tenure policy in 2024. Thus, paragraph (iii) of the Applicants' draft order has no basis.

In their answering affidavit, the Applicants sought to make a new case that the Land Commission Act does not outline the procedures contemplated in s 293(2) of the Constitution. Mr. Biti, also reinforced this position through oral submissions. Section 293(2) of the Constitution provides that:

> "The State may not alienate more than one piece of agricultural land to the same person and his or her dependants."

Further, Mr. Biti submitted that the Land Commission Act does not capture all the principles outlined in Section 289 of the Constitution. The Section provides as follows:

"In order to redress the unjust and unfair pattern of land ownership that was brought about by colonialism, and to bring about land reform and the equitable access by all Zimbabweans to the country's natural resources, policies regarding agricultural land must be guided by the following principles—

(a) land is a finite natural resource that forms part of Zimbabweans' common heritage;

(b) subject to section 72, every Zimbabwean citizen has a right to acquire, hold, occupy, use, transfer, hypothecate, lease, or dispose of agricultural land regardless of his or her race or colour;

(c) the allocation and distribution of agricultural land must be fair and equitable, having regard to gender balance and diverse community interests;

(d) the land tenure system must promote increased productivity and investment by Zimbabweans in agricultural land;

(e) the use of agricultural land should promote food security, good health and nutrition, and generate employment, while protecting and conserving the environment for future generations;

(f) no person may be deprived arbitrarily of their right to use and occupy agricultural land."

However, it is a well-established principle that an application stands or falls by its founding affidavit. The Applicants are not allowed to smuggle a new case in their answering affidavit. Reference is made to the case of *Chironga v Minister of Justice, Legal and Parliamentary Affairs and Ors*[1], where the Constitutional Court made the following remarks:

"It is trite that an application stands or falls on the averments made in the founding affidavit. See *Herbstein & van Winsen the Civil Practice of the Superior Courts in South Africa 3rd ed (*hereinafter 'Herbstein &Van Winsen or the Authors'*)* p 80 where the authors stated that:

"The general rule, however, which has been laid down repeatedly is that an applicant must stand or fall by his founding affidavit and the facts alleged therein, and that although sometimes it is permissible to supplement the allegations contained in that affidavit, still the main foundation of the application is the allegation of facts stated therein, because these are the facts which the respondent is called upon either to affirm or deny. If the applicant merely sets out a skeleton case in his supporting affidavits any fortifying paragraphs in his replying affidavits will be struck out.""

[1] CCZ14/20.

Thus, the new dimension of the Applicants' argument that the Land Commission Act is insufficient is of no consequence. Accepting this argument will prejudice the Respondents who were forced to respond to the Applicants' case as pleaded in the founding affidavit. The Respondents will not have a further opportunity to file an additional affidavit responding to the new issues raised in the answering affidavit. If the Applicants are of the view that the provisions of the Land Commission Act are not enough, they need to lodge a fresh application.

I will proceed to examine whether the land tenure policy introduced by the first Respondent is *ultra vires* the provisions of ss 72(5), 293(3) and 297(1)(a) of the Constitution. As I have highlighted before, the land tenure was introduced after the enactment of the Land Commission Act. Thus, the land tenure is not *ultra vires* Section 293(3) of the Constitution.

Section 72(5) of the Constitution provides that:

> "As soon as practicable after agricultural land is compulsorily acquired in accordance with subsection (2), the officer responsible for the registration of title over land must, without further notice, effect the necessary endorsements upon any title deed and entries in any register for the purpose of formally cancelling the title deed and registering the State's title over the land."

It is common cause that old title deeds in respect of agricultural land acquired by the State were cancelled. Ms. Musangwa submitted that agricultural land was subsequently subdivided. She further submitted that the Respondents are not prohibited from issuing new title to the new owners. Reference was made to the provisions of Section 293(1) of the Constitution which provides that:

> "The State may alienate for value any agricultural land vested in it, whether through the transfer of ownership to any other person or through the grant of a lease or other right of occupation or use, but any such alienation must be in accordance with the principles specified in section 289."

I do agree with Ms. Musangwa's submissions. Section 72(5) of the Constitution does not prevent the State from issuing title to new owners after the cancellation of title deeds which were in force prior to the compulsory acquisition of the agricultural land. In terms of Section 292 of the Constitution, the State is obliged to improve the security of land tenure. The Section provides as follows:

> "The State must take appropriate measures, including legislative measures, to give security of tenure to every person lawfully owning or occupying agricultural land."

By enacting the Land Commission Act, the Respondents instituted legislative measures to enhance the security of the land tenure as contemplated by s 292 of the Constitution. For this reason, the land tenure introduced by the first Respondent which was launched pursuant to the Land Commission Act, is not *ultra vires* the provisions of s 72(5) of the Constitution.

The Applicants also argued that the land tenure is *ultra vires* the provisions of Section 297(1)(a), which provides that:

> "The Zimbabwe Land Commission has the following functions—
> (a) To ensure accountability, fairness and transparency in administration of agricultural land that is vested in the State;".

The Applicants did not motivate this point. I am unable to detect the manner in which the impugned land tenure policy may be *ultra* vires the provisions of Section 297(1)(a) of the Constitution. This provision outlines one of the functions of the Zimbabwe Land Commission. The introduced land tenure policy does not violate this provision, in my view. There was no further evidence on how this provision was clearly violated. Ms. Musangwa submitted that the Applicants must clearly articulate the violations made for the court to be able to protect their rights. In the absence of further evidence, I am unable to believe that the land tenure policy is *ultra vires* this provision. For this reason, paragraph I of the draft order is baseless.

Lastly, but equally important, I will move on to assess whether it is necessary to make a declarator contemplated in paragraph (ii) of the draft order. In this paragraph, the Applicants motivate me to declare that:

> "Title Deeds in respect of agricultural land that was acquired by the State and that vests in the State by virtue of the provisions of Section 72(4) and Section 290 of the Constitution were all cancelled and are non-existent in terms of Section 72(5) of the Constitution."

Section 72(4) of the Constitution provides that:

"All agricultural land which—
(a) Was itemized in Schedule 7 to the former Constitution; or
(b) Before the effective date was identified in terms of section 16B(2)(a)(ii) or (iii) of the former Constitution

Continues to be vested in the State, and no compensation is payable in respect of its acquisition except for improvements effected on it before its acquisition."

Section 290 of the Constitution provides that:

"(1) All agricultural land which—
(a) was itemised in Schedule 7 to the former Constitution; or
(b) before the effective date, was identified in terms of section 16B(2)(a)(ii) or (iii) of the former Constitution;
continues to be vested in the State.
(2) Any inconsistency between anything contained in—
(a) a notice itemised in Schedule 7 to the former Constitution; or
(b) a notice relating to agricultural land and published in terms of section 16B(2)(a)(ii) or (iii) of the former Constitution;
and the title deed to which it refers or is intended to refer, and any error whatsoever contained in such a notice, does not affect the operation of subsection (1) or invalidate the State's title to the agricultural land concerned in terms of that subsection."

The provisions of Section 72(5) of the Constitution have been highlighted before. In paragraph (ii) of their draft order, the Applicants wish this court to declare that the title deeds of the acquired agricultural land were cancelled. This is exactly what Section 72(5) provides for. This court cannot be invited to declare the position of the law which is common cause. Doing so can only be a futile academic exercise. Reference is made to the case of Johnson v Afc[2], where Gubbay CJ commented as follows:

"The condition precedent to the grant of a declaratory order under s 14 of the High Court of Zimbabwe Act 1981 is that the applicant must be an "interested person", in the sense of having a direct and substantial interest in the subject matter of the suit which could be prejudicially affected by the judgment of the court. The interest must concern an existing, future or contingent right. The court will not decide abstract, academic or hypothetical questions unrelated thereto… At the second stage of the enquiry, the court is obliged to decide whether the case before it is a proper one for the exercise of its discretion under s 14 of the Act. It must take account of all the circumstances of the matter."

[2] 1995 (1) ZLR 65 (S) at p 72E.

Thus, it serves no purpose to declare the existing and undisputed position of the law that all old title deeds in respect of all agricultural land acquired by the Government were cancelled. However, as highlighted before, the State is not prevented from issuing new title to new owners of agricultural land in terms of Section 293(1) as read with Section 292 of the Constitution.

In the circumstances, I am unable to find any merit in the present application, having examined all relevant paragraphs of the Applicants' draft order. It is accordingly ordered as follows:

The application be and is hereby dismissed with costs.

DEME J:……..

Tendai Biti Law, Applicants' Legal Practitioners.
Civil Division, Respondents' Legal Practitioners.